

Toledo council considers broader data privacy rules amid Flock debate



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With Toledo City Council split over the future of Flock surveillance cameras, councilmen are considering broader guidelines to protect residents' data and govern the city's use of technology.

Councilman Sam Melden introduced the proposal, which would establish data privacy and protection guidelines for future technology contracts. Council President Vanice Williams said she expects a vote at the Nov. 17 meeting.

"If we had this policy in place prior to the procurement of a contract like Flock, we may not be in the situation we're in right now," Mr. Melden said during Tuesday's agenda review meeting.

The proposed legislation establishes rules for data sharing and security, as well as for reviewing technology contracts before they are approved, according to the councilman.

The proposal comes after a series of votes Nov. 4 failed to advance legislation that would terminate the city's contracts with Flock.

"[This] is going to help us navigate contracts with future vendors," Mr. Melden said. "... Every single software product ... probably has an AI element and [makes] our residents' information directly accessible to an AI tool."

He said his proposal is about data control — to make sure data is governed and secured "in the right way."

"I am particularly interested in what we do at the point of procurement going forward," Mr. Melden said. "Because at some point we have to know, like, when something goes out for bid, how do we know that it is in line with these data policies?"

Ms. Williams said after the meeting that Mr. Melden's initiative builds upon the legislation sponsored by Councilman Adam Martinez as an alternative to canceling Flock contracts.

If passed, the Martinez legislation would allow the city to retain its Flock contracts while prohibiting certain uses of the technology, including sharing data related to immigration status, reproductive health care, and gender-affirming care. Council referred the proposal to its Public Safety & Criminal Justice Reform Committee on Nov. 4.

"Councilman Melden actually covers all of our [future] systems," she said. "... For every software that we purchase, we need to have that."

Councilman Nick Komives said he had reviewed the proposed "comprehensive" guidelines but needs more time to study them before the vote. He said he trusts the council's legal staff, which reviewed the proposal over the past few months.

Mr. Komives is one of five councilmen who sponsored the proposal to terminate the city's Flock contracts and deactivate the cameras, pending the results of an ongoing audit of the city's use of the technology.

"I'm anxious to see the ways that [the Melden guidelines] might impact various contracts that we already have and thinking about what their renewals will look like in the future," Mr. Komives said. "So I am looking forward to seeing the ways that it impacts our contracts."

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